

25STCV19206 25STCV19206

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C06%2F25%2F2026

Source SHA-256: e10da49bdf365cefad85542e8804e2bb0aeb76b704c69d7ab111c385ef97d3a

Case Number: 25STCV19206 Hearing Date: June 25, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

BP HOLDINGS RHO, LLC

vs.

ANN SUNG, et al.

Case

No.: 25STCV19206

Hearing Date: June 25, 2026

Defendant

Steve Su's motion for determination of good faith settlement is GRANTED.

On 7/1/2025,

Plaintiff BP Holdings Rho, LLC (Plaintiff) filed suit against Ann Sung, Yichun Kuo, Steve Su, and Sinan Duan (collectively, Defendants) alleging: (1) breach of contract; and (2) specific performance.

On 6/2/2026,

Defendant Steve Su moved for a determination of good faith settlement.

The motion is
unopposed.

Legal Standard

In

an action where it is alleged that two or more parties are joint tortfeasors,
“a settling party may give notice of settlement to all parties and to the
court, together with an application for determination of good faith settlement
and a proposed order. The application shall indicate the settling parties, and
the basis, terms, and amount of the settlement. . . . Within 25 days of
the mailing of the notice, application, and proposed order, or within 20 days
of personal service, a nonsettling party may file a notice of motion
to contest the good faith of the settlement. If none of
the nonsettling parties files a motion within 25 days of mailing of
the notice, application, and proposed order, or within 20 days of personal
service, the court may approve the settlement.” (Code Civ. Proc., §
877.6, subd. (a)(2).)

“The

issue of the good faith of a settlement may be determined by the court on the
basis of affidavits served with the notice of hearing, and
any counteraffidavits filed in response, or the court may, in its
discretion, receive other evidence at the hearing,” and the party
asserting lack of good faith has the burden of proof on that issue. (Id., subd.
(b), (d).) “A determination by the court that the settlement was made in good
faith shall bar any other joint tortfeasor or co-obligor from any further
claims against the settling tortfeasor or co-obligor for equitable comparative
contribution, or partial or comparative indemnity, based on comparative
negligence or comparative fault.” (Id., subd. (c).)

Discussion

Defendant

moves the Court to determine that the settlement entered into between him and
Plaintiff was entered in good faith.

To determine whether a settlement was entered in good faith, Courts apply the standards set forth by the California Supreme Court in *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 37 Cal.3d 448. Under that case, courts are to consider (1) the settling defendant's alleged proportion of liability and a rough approximation of the plaintiff's total recovery; (2) the amount being paid by the settling defendant; (3) the recognition that a settling party should pay less in settlement than it would if found liable at trial; (4) the settling defendant's financial condition and insurance coverage available; and (5) whether there was any collusion, fraud, or tortious conduct aimed to injure the interest of any non-settling party. (37 Cal.3d at p. 499.) The party asserting lack of good faith has the burden of proof on this issue. (CCP § 877.6, subd. (d).)

Here,
pursuant to the settlement:

Mr. Su has
agreed to pay Plaintiff the sum of One Million Dollars (\$1,000,000) in full satisfaction of all claims Plaintiff has asserted or could assert against him, including without limitation all claims arising out of or related to that certain Recourse Guaranty executed by Mr. Su in favor of Plaintiff. In exchange, Plaintiff has agreed to release the attachment liens against Mr. Su's personal assets, and, following expiration of the applicable preference period under Federal bankruptcy law, to dismiss this action against Mr. Su with prejudice. As such, Mr. Su and his wife, whose name is Pichin Tai, will then have a general release of all claims from Plaintiff.

(Motion,
1: 5-12.)

To show good
faith, Defendant submitted evidence that the parties engaged in extensive arms-length negotiations. (See Gunn Decl., Sarver Decl.) Indeed, no oppositions to the settlement were filed, and thus no argument has been advanced that the settlement is the result of fraud or collusion.

After review,
and considering the lack of opposition to Defendant's motion, the Court finds that the settlement meets the Tech-Bilt factors, and that it was entered into in good faith.

Based on the foregoing, Defendant's motion for determination of good faith settlement is granted.

It is so ordered.

Dated: June
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.